

18.	25PR0363	ESTATE OF THOMAS ANDREW SALATA
MOTION TO SET ASIDE/VACATE		

On July 24, 2026, Respondents, Jonathan Salata and Miaroby Salata (collectively “Respondents”), filed a Motion to Vacate Bifurcation Order; to Stay Probate Proceedings Pending Resolution of Financial Elder Abuse Complaint; and for Protective Occupancy Order. An Opposition was filed by Petitioner, Pamela Salata (“Petitioner”), on September 15, 2026.

Request for Judicial Notice

Petitioner requests judicial notice of the following: 1) Minute Order dated February 23, 2026, entered in case no. 25PR0360; 2) Notice of Related Case dated August 27, 2026, in case no. 26CV1514; and 3) Notice of Related Case dated August 27, 2026, in case no. 25PR0363.

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed, including “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.”

Section 452 provides that the court “may” take judicial notice of the matters listed therein, while Section 453 provides a caveat that the court “shall” take judicial notice of any matter “specified in Section 452 if a party requests it and: (a) Gives each adverse party sufficient notice of the request...to enable such adverse party to prepare to meet the request; and (b) Furnishes the court with sufficient information to enable it to take judicial notice of the matter.” Cal. Evid. Code § 453.

While the requests made by Petitioner fall within the purview of Section 452, matters which *may* be judicially noticed, the Court does find that Petitioner provided Respondent and the Court sufficient notice of the request and copies of the documents requested to be noticed. As such, Petitioner has satisfied the requirements of Evidence Code § 453 and the request for judicial notice is granted.

Legal Principles

Code of Civil Procedure § 663 provides:

A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

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1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.
2. A judgment or decree not consistent with or not supported by the special verdict.

Background

On December 24, 2025, Petitioner filed a Petition of Surviving Spouse for Order Confirming Community Property Interests, for Recovery and Set Aside of Unauthorized Transfers, for Injunctive Relief, for Accounting, and for Related Relief Pursuant to Probate Code §§ 850-859, 5020, 5021, Family Code §§ 1100(b), 1102, and Civil Code § 682.1 (“Spousal Property/850 Petition”).

At the trial setting hearing on June 1, 2026, the Court set a trial on the limited deed issue only. On June 2, 2026, Respondent filed a Complaint for Financial Elder Abuse (“FEA Complaint”) against Petitioner (case no. 26CV1514).

Discussion

Respondents argue that the bifurcation order violated procedural due process and should be vacated pursuant to Code of Civil Procedure § 663 because Petitioner’s oral request to bifurcate one issue of the underlying Spousal Property/850 Petition at a hearing set to review and set a trial on all issues, made without prior written notice, deprived Respondent of a meaningful opportunity to prepare, evaluate, and object to the oral motion. Due to Respondent’s counsel’s difficulty hearing, he misunderstood the nature and scope of Petitioner’s request and could not mount a proper objection.

Respondents contend the bifurcation order violates principles of judicial economy, as deciding the gift deed validity in isolation is inefficient, will cause significant repetition of the same witness testimony, and risks inconsistent rulings because the FEA Complaint directly impacts Petitioner’s capacity to inherit or receive any portion of Decedent’s estate, potentially rendering the gift deed issue entirely moot pursuant to Probate Code § 259. Respondents further request the Court stay the Spousal Property/850 Petition pending resolution of the FEA Complaint on the same grounds and pursuant to California Rules of Court, Rule 3.515(a).

Petitioner argues the bifurcation order was a trial-management and sequencing order, not a judgment, decree, or adjudication of title, possession, or any party’s property rights thereby rendering Respondents’ reliance on Code of Civil Procedure § 663 misplaced. Respondents’ request is inherently a request for reconsideration under Code of Civil Procedure § 1008 which is inapplicable as the motion is untimely, nor is any new evidence presented. Additionally, Petitioner asserts that even if Probate Code § 259 applies, she nevertheless owns no less than her undivided one-half interest in the home and the issue does not become moot.

The Court does not find Code of Civil Procedure § 663 applicable for the underlying trial-setting order. A bifurcation order is a procedural mechanism, not a judgment or decree as required under § 663. Respondents' request appears to be a request for reconsideration, which the Court finds is time barred and for lack of new or different facts, circumstances, or law. Respondents' judicial economy argument premised on Probate Code § 259 is speculative, premature, and fails to consider Petitioner's undisputed fifty percent interest in the property.

Alternatively, Respondents assert that Probate Code § 856.5 supports hearing the FEA Complaint first because the probate court should not grant § 850 relief while the predicate civil action may determine the parties' substantive entitlement to the very property rights the probate petition asks the Court to adjudicate.

The Court does not find § 856.5 requires a stay merely because the FEA Complaint was filed. The FEA Complaint was filed after the Spousal Property/850 Petition and after the Court set the limited deed issue for trial. The Court declines to determine that the property and deed issues presented by the Spousal Property/850 Petition should instead be determined by the subsequently filed civil action.

Lastly, Respondents request the Court grant a protective occupancy order permitting Respondents to remain on the property pending adjudication of the elder abuse claim, as displacement would disrupt the status quo, impose unnecessary hardship, and allow a potential elder abuser to take possession of property to which she may have no legal entitlement.

As the Court issued a preliminary injunction which granted Petitioner exclusive use and possession of the residence, the Court declines to permit Respondents to retain possession pending adjudication of the elder abuse claim.

Respondents' Motion to Vacate Bifurcation Order; to Stay Probate Proceedings Pending Resolution of Financial Elder Abuse Complaint; and for Protective Occupancy Order is denied.

TENTATIVE RULING #18:

RESPONDENTS' MOTION TO VACATE BIFURCATION ORDER; TO STAY PROBATE PROCEEDINGS PENDING RESOLUTION OF FINANCIAL ELDER ABUSE COMPLAINT; AND FOR PROTECTIVE OCCUPANCY ORDER IS DENIED.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.